

1.

CASE #	CASE NAME	HEARING NAME
CVRI2601151	CITY OF PERRIS VS MV LAND	MOTION FOR PREJUDGMENT POSSESSION BY CITY OF PERRIS

Tentative Ruling:

This motion is unopposed. Motion for Prejudgment Possession is granted in all respects. Proposed Order submitted has been signed by the Court and ordered filed. Moving party to give notice of ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404704	AULLS VS FCA US	MOTION TO EXCLUDE EXPERT TESTIMONY

Tentative Ruling:

This motion is unopposed. Motion to Exclude Expert Testimony is granted in its entirety. Proposed Order submitted has been signed by the Court and ordered filed. Moving party to give notice of ruling.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2205313	JANE DOE #1 VS COUNTY OF RIVERSIDE	MOTION TO VACATE ALL ORDERS ISSUED BY JUDGE SOPHIA CHOI

Tentative Ruling:

Moving parties: Plaintiffs Jane Doe #1, John Doe #2 and John Doe #4
("Plaintiffs")

Responding parties: Defendants County of Riverside (the "County") and City of
San Jacinto (the "City") (together, "Defendants")

This action arises out of the alleged sexual abuse of Plaintiffs when they were minors by deceased former Riverside County Sheriff's Deputy Kevin Duffy. Plaintiffs filed their original complaint on December 7, 2022. The case was originally assigned to Hon. Craig Riemer on or about December 8, 2022. On July 28, 2023, the matter was reassigned to Hon. Christopher Harmon. Following the County's peremptory challenge made under CCP § 170.6, the matter was reassigned to Hon. Irma Asberry on August 8, 2023. The matter was again reassigned to Hon. John Molloy on June 20, 2024. On August 12, 2025, the matter was reassigned to the Hon. Sophia Choi. Thereafter, Judge Choi made several important rulings, including rulings made on the following motions:

- Plaintiffs' Motion for Leave to File First Amended Complaint (October 6, 2025);
- County's Motion for Judgment on the Pleadings (January 22, 2026);
- City's Demurrer (March 5, 2026)
- County's Motion for Summary Adjudication (March 11, 2026); and
- Plaintiffs' Motion for Reconsideration (March 11, 2026).

On March 20, 2026, Judge Choi recused herself from the case. The March 20, 2026 Minute Order indicates: "Honorable Judge Sophia Choi recuses herself from hearing matters in this case pursuant to CCP 170.1/170.3." The matter was reassigned to Hon. Carol Greene, and following a peremptory challenge, to Hon. Eric A. Keen.

Plaintiffs now move for an order vacating all prior orders issued by Judge Choi on the grounds that she was disqualified at the time that she ruled on the various motions. Plaintiffs argue that although Judge Choi did not recuse herself until March 20, 2026, the disqualifying fact existed at the time of the rulings. Specifically, Plaintiffs contend that the disqualifying fact arose from Judge Choi's service as Deputy County Counsel from 2007 to 2020, during which time, Plaintiffs claim, she likely received information regarding the County's internal civil liability assessment while the criminal investigation of Duffy was ongoing.

In opposition, the County argues that Plaintiffs' entire theory is nothing more than speculation and that Plaintiffs fail to provide any facts to demonstrate that Judge Choi was disqualified at the time that she ruled on the various motions. The County further argues that, even assuming a civil liability assessment was presented to County Counsel, there is no evidence to suggest that Judge Choi participated in the Duffy matter (or that she was part of the unit tasked with such responsibility). Lastly, the County argues that had Judge Choi actually been involved in the Duffy matter while serving with County Counsel, she would have recused herself from the outset of the assignment.

The City argues in its separately-filed opposition that Plaintiffs fail to demonstrate good cause in accordance with CCP § 170.3(b)(4) to support vacating the prior orders of a judge who later recused herself.

In a consolidated reply, Plaintiffs argue that the evidence presented with the motion is sufficient to demonstrate the basis of Judge Choi's recusal – to wit, her prior service with County Counsel – which existed at the time Judge Choi was assigned to preside over this case. Plaintiffs argue that it is not a matter of speculation but of reasonable inference drawn from undisputed facts. Plaintiffs further argue that because the disqualifying facts existed prior to Judge Choi's rulings in this matter, CCP § 170.3(b)(4) does not apply.

Analysis

I. Request for Judicial Notice

Plaintiffs' unopposed request that the court take judicial notice of Governor

Newsom's March 12, 2024 press release is granted. (Evid. Code § 452(c) *Joyce v. Ford Motor Co.* (2011) 198 Cal.App.4th 1478, 1493.) However, the statements of fact contained in the press release are not subject to judicial notice. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194.) Notwithstanding, Judge Choi's prior service as Deputy County Counsel is not reasonably subject to dispute [Evid. Code § 452(h)] and is conceded by Defendants for purposes of this motion.

II. The Motion is Denied

CCP § 170 provides that "[a] judge has a duty to decide any proceeding in which he or she is not disqualified." That is, a judge is obligated to preside in assigned matters unless disqualified. (See also *United Farm Workers of America v. Superior Court* (1985) 170 Cal.App.3d 97, 103 [CCP § 170 "serves to remind judges of their duty to hear cases which are controversial and might subject them to public disapproval as well as to protect them from public criticism by a clear statement of their responsibility."].) Further, Canon 3E of the Code of Judicial Ethics provides that "[a] judge shall disqualify himself or herself in any proceeding in which disqualification is required by law." CCP § 170.1 sets forth all the legal grounds upon which a trial judge is disqualified from hearing matters.

Importantly, disqualification describes a fact which exists without judicial action or recognition. (*Christie v. City of El Centro* (2006) 135 Cal.App.4th 767, 777.) Thus, the consequences of the status of being disqualified flow from the moment the fact of disqualification comes into existence in a case. (*Id.* at 777-79; see also *Urias v. Harris Farms, Inc.* (1991) 234 Cal.App.3d 415, 425.)

There is a split of authority as to whether a judge's disqualification renders an order issued prior to disqualification void or merely voidable. (See *Conservatorship of Tedesco* (2023) 91 Cal.App.5th 285, 305; *Polanski v. Superior Court* (2009) 180 Cal.App.4th 507, 542-543, n. 22.) Some cases indicate that the orders of disqualified judges are void outright and must be vacated; other courts have concluded that a rule of voidability by an aggrieved party is the better course. Here, it is not particularly relevant which approach is preferable. Plaintiffs challenge Judge Choi's prior orders that were adverse to them (with one exception) as having been made by a disqualified judge.

However, under CCP § 170.3(b)(4), "[i]f grounds for disqualification are first learned of or arise after the judge has made one or more rulings in a proceeding, but before the judge has completed judicial action in a proceeding, the judge shall, unless the disqualification be waived, disqualify himself or herself, but in the absence of good cause the rulings he or she has made up to that time shall not be set aside by the judge who replaces the disqualified judge."

In the present case, Judge Choi disqualified herself from presiding over this matter on March 20, 2026. The minutes provide very simply, "Honorable Judge Sophia Choi recuses herself from hearing matters in this case pursuant to CCP 170.1/170.3." There is no indication of the factual basis for her disqualification. Plaintiffs, however, contend that the disqualifying fact arose from Judge Choi's service as Deputy County Counsel from 2007 to 2020 and speculate that Judge Choi likely received information

regarding the County's internal civil liability assessment while the criminal investigation of Duffy was ongoing. On that basis, Plaintiffs argue that all of orders issued by Judge Choi are void and should therefore be vacated. Plaintiffs further argue that CCP § 170.3(b)(4) has no application because the disqualifying fact existed at the time Judge Choi was assigned to preside over the case. Stated in other terms, Plaintiffs seek a post hoc determination that Judge Choi should have been disqualified from presiding over this case at the beginning of her assignment.

In that regard, CCP § 170.3(c)(1) requires that a disqualification statement be verified and set forth "the facts constituting the grounds" for the disqualification of the judge. Mere allegations setting forth conclusions of the declarant do not comply. (*Ephraim v. Superior Court* (1941) 42 Cal.App.2d 578, 578-579; *Urias, supra*, 234 Cal.App.3d at 426.) "Potential bias and prejudice must clearly be established." (*Roitz v. Coldwell Banker Residential Brokerage Co.* (1998) 62 Cal.App.4th 716, 724.) It is insufficient simply to make the claim that a judicial officer is biased, or that grounds exist for the disqualification of the court; *actual facts* must be set forth. A claim of disqualification cannot be based upon information and belief, hearsay or other inadmissible evidence. (*Higgins v. City of San Diego* (1899) 126 Cal. 303, 313-314; see also *United Farm Workers of America, AFL-CIO v. Superior Court* (1985) 170 Cal.App.3d 97, 106, n. 6 [disqualification cannot be based upon hearsay or other inadmissible evidence].) Verified statements based upon hearsay or on information and belief are insufficient to support judicial disqualification. (See *N. Beverly Park Homeowners Ass'n v. Bisno* (2007) 147 Cal.App.4th 762, 778.)

Plaintiffs' argument that Judge Choi disqualified herself because of her prior service as Deputy County Counsel is unsupported and is entirely fueled by speculation. In support of their motion, Plaintiffs include the Declaration of Michael J. Lujan ("Lujan Decl."). Lujan, a retired Captain with the Riverside Sheriff's Department who was involved in the criminal investigation of Duffy in 2009, details the procedures the Department followed when incidents involving Department personnel could give rise to civil liability, including the preparation of a "civil litigation package" that would ultimately be presented to County Counsel in anticipation of litigation. (Lujan Decl., ¶¶ 5-11.) Lujan, however, does not offer any specific testimony whether a civil litigation package was prepared regarding Duffy and offers no testimony regarding Judge Choi and her prior service with County Counsel.

Plaintiffs present no admissible evidence and there are otherwise no facts in the record to demonstrate that Judge Choi was disqualified as a matter of law at the time she issued the various orders. (See *Bates v. Rubio's Restaurants, Inc.* (2009) 179 Cal.App.4th 1125, 1134; see also *Urias, supra*, 234 Cal.App.3d at 424 ["A party who seeks to declare a judgment void on the ground the judge was disqualified must allege and prove facts which clearly show that such disqualification existed."].) Accordingly, the motion to vacate prior orders is denied.

Summary:

Grant Plaintiffs' unopposed request for judicial notice. Deny motion.